

Beyond Gender and Negotiation to Gendered Negotiations

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Morgan Stanley has been hit, yet again, with a gender discrimination lawsuit. ... The suit comes two years after former Morgan broker Allison Schieffelin was awarded \$12 million in her sexual discrimination suit against the firm. ... According to this latest complaint, ... “Morgan Stanley has engaged in a pattern and practice of gender discrimination with respect to compensation and promoting females.” Specifically, the women contend that Morgan discriminated against female advisers in terms of training, mentoring, assignment of accounts, participation in company-approved partnership arrangements with male advisers, promotions to branch manager positions, and assignment of office space and sales support staff.

On Wall Street, August 1, 2006

Where do we start if we are interested in understanding how gender plays out in negotiations that take place within organizations? Do we start with women and men and explore their individual differences in thought, motivation, style, appetite for risk, and propensity to ask? This approach, primarily carried out in the laboratory, has dominated the recent study of gender in negotiations. Or do we start with belief systems and cultural patterns within organizations and explore ways in which these are gendered and result in gendered negotiations? This is the approach taken throughout this special issue.

Laboratory research places men and women in identical negotiations and looks at the effects of gender, often in interactions with situational variables, on negotiation processes and outcomes. But the Morgan Stanley example above suggests that women will face a different set of negotiations than their male colleagues if they want to succeed on Wall Street (Eagly & Carli, 2007). Women have to negotiate over issues that men can take as givens—opportunities for promotion and training, mentoring, client assignments, partnership arrangements, resources, and office space, among others. As the quote suggests, when and if these negotiations occur, they take place in the context of a particular *negotiated order*—cultural patterns and work practices that the plaintiffs in the Morgan Stanley case claim are discriminatory. This claim is not unique to Morgan Stanley; many of the large firms on Wall Street have settled such suits (Roth, 2006). But whether these practices are examples of overt discrimination (Sturm, 2001) is not the question addressed in this issue. What is of interest here is how these patterns and practices might shape our understanding of gender and negotiation in the workplace and the implications of this framing for research and practice.

In sociological and ethnographic studies of organizations, there has been a tradition of studying negotiation and dispute resolution in context (Bendersky & McGinn, 2008).

Research in these domains treats status, social structure, and historical situation as determining factors in individual compensation and achievement. Cecilia Ridgeway's work on status construction theory (e.g., Ridgeway & Erickson, 2000) provides evidence of how widely held beliefs about the assumed rightful status of members of any identity group spread through interaction. Existing structural conditions within organizations suggest a status ordering that places some groups higher than others, creating a self-reinforcing system that attaches status and provides advantage to individuals because of their group identity. From this vantage point, individual women's negotiation outcomes reflect the past status ordering within their organizations, an ordering that in many (perhaps most) cases grants men higher status than women and, therefore, greater rights to compensation and positions of leadership.

Negotiated order theory offers an interactive and cultural perspective on negotiations in organizational contexts. Similar to the contemporaneous work on structuration (Giddens, 1979), negotiated order theory illustrates how everyday negotiated interactions between different groups of professionals create and recreate organizational structures, privileging some over others (Strauss, 1978; Strauss, Schatzman, Bucher, Erlich, & Sashin, 1963). Absent from this work has been a consideration of *second generation gender issues*, or how gender and gendered relationships shape particular negotiated orders such that they can have differential consequences for groups of women and men when they negotiate (Acker, 1990; Sturm, 2001). Second generation gender issues appear neutral and natural on their face, but they result in different experiences for and treatment of women and men (Sturm, 2001). Distinct from first generation gender discrimination involving intentional acts of bias, second generation gender practices seem unbiased in isolation, but they reflect masculine values and the life situations of men who have dominated in the public domain of work (Flax, 1990; Fletcher, 1999). As a result, the negotiated order of most organizations privileges masculine and discounts feminine practices and assumptions. The papers in this special issue highlight second generation gender issues in different contexts and show how gendered negotiated orders play into negotiations and the consequences for the actors involved.

To expand our purview of how gender in organizations intersects with negotiation, we convened a conference in November 2007 to consider second generation gender issues in negotiations.¹ We invited people who were doing research that touched on the implications of gendered practices and policies for negotiations in the workplace. For the most part, the invitees, who are the authors in this issue, were not negotiation scholars but rather draw from sociological, ethnographic, and feminist views of organizations. We wanted to move away from simple distinctions between men and women in structured negotiation settings to a deeper investigation of how gender dynamics in organizations impact the underlying premises for, understandings in, and processes of negotiations. As a result, the papers in this issue look rather different than a typical study of gender and negotiation. The approaches the authors take in investigating

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negotiation within gendered organizational contexts do not fit neatly into the standard methodologies designed for studying differences between men and women. They concentrate instead on multiple aspects of identity—class, physicality, career aspirations, personal ties—and explore how gender in organizations interacts with these aspects of identities and how this plays out in negotiations. Each of the articles explores a particular second generation work issue, considers how specific contexts can affect and position negotiators in gendered ways, and delineates the strategies negotiators use in these contexts. In so doing, the articles expand the domains of what we consider negotiable issues as they enhance our understanding of how gender plays out in negotiations.

In this introduction, we will describe this expanded domain of second generation negotiation issues and consider what this perspective implies for our understanding of gender and negotiation within organizations. The final article in this issue, by Sondak and Stulmacher, explores the implications for future negotiation research to be drawn from all of the articles presented here.

A Negotiation Is a Negotiation Is a Negotiation

Borrowing from Gertrude Stein, “a negotiation is a negotiation is a negotiation” is the critique leveled by Anselm Strauss (1978, p. 7) about the scholarly tendency to focus on negotiation processes as if they are all the same, ignoring their variety and the role of context in shaping these processes. This critique reflects the origins of negotiated order theory. In their work in psychiatric hospitals, Strauss et al. observed how the incomplete and ambiguous structure of rules and procedures and the segmentation and hierarchy of occupations in the hospital, coupled with the need to serve patients, created problem situations that gave rise to almost continuous negotiation about the practice and delivery of care (Strauss et al., 1963). Negotiated order research highlights that negotiations are ongoing and pervasive across organizations. Simultaneously, this perspective illuminates how the structural conditions of those negotiations—such as the parties, the issues, and the character of the process—will differ with the particulars of the organization as well as the interests of the negotiators (Barley, 1991; Fine, 1987; Maines, 1977).

Studying negotiations in closed systems within a laboratory setting misses precisely those gender effects likely to be most operative in organizations—the relative presence of women and men in power positions; the extent to which negotiations have included or benefitted men and women differently in the past; and the awareness of multiple interrelated negotiations rather than one-shot deals. These are what can empower or weaken women in their negotiations within organizations. And different groups of women—for example, lesbians, women of color, older women, and pregnant women—are likely to be affected differentially.

There are several features of negotiated order theory that are particularly relevant to a consideration of gender in negotiations. First, what constitutes the *subject of negotiation is structured around the work that is done*. As Strauss describes it, “a negotiated order on any given day is the sum total of an organization’s rules and policies, along with whatever agreements, understandings, pacts, contracts, and other working arrangements currently obtained. These include agreements at every level or organization, of every

clique and coalition, and include covert as well as overt agreements” (1978, pp. 5–6). In other words, negotiations mark the activities involved in designing jobs, doing work, avoiding work, achieving status, and establishing boundaries of authority and responsibility, among a host of other potential issues. Because jobs, work, status, and authority are gendered, this view of organizational negotiations contrasts sharply with the transactional, economic perspective that forms the basis for much of the current negotiation research.

A second useful feature of the negotiated order perspective is the insight that *negotiators are organizational actors*. What matters to them, the options they develop, and the choices they make are rooted in their positions in their organizations as well as their individual dispositions. The “definition of the situation”—the meaning one makes of situation and the choices each actor has to respond (McHugh, 1968)—is influenced by the structural and negotiated contexts within which action occurs. The power to control the definition of the situation is critical to negotiation processes and outcomes. Unlike in laboratory studies of negotiation, in which the situation is mostly predefined, in organizations the status and power of the negotiators affects the definition of the situation, determines what is negotiable, establishes appropriate negotiation behavior, etc. Certain people or groups may, because of their position, gender, or other attributes, be accorded legitimacy to define the situation for others even if those definitions fly in the face of official rules or policies. Hallett (2003), drawing on Bourdieu, defines this as symbolic power—the subtle, invisible power to define the situation in which the interactions that characterize negotiated orders take place (p. 133). Status beliefs can be shared and so come to be accepted as what most people believe (Ridgeway, 2001), and people who might do things differently have to justify a different approach and negotiate for credit (Thomas & Ely, 1996). As Susan Sturm describes in her article in this issue, these definitional processes are usually quite subtle and nuanced, and are often difficult to recognize in isolation, but can have considerable impact on a particular negotiated encounter.

The third feature of a negotiated order perspective that is relevant here is that *organizational structure, practices, and policies are products of previous negotiations*. In this way, the perspective is about both stability and change. The negotiated order is stable in that at a given point in time, the current order designates the context within which negotiations occur, but ongoing negotiations have the potential to change that order. Over time, efforts toward change may be successful and new actors may be accorded legitimacy as the negotiated order shifts. This can happen as the result of a series of “small wins” (Meyerson & Fletcher, 2000) as the actions of individuals accumulate for change, or it can be the result of major changes led from the top (Hallett, 2003). Change can be the result of efforts spearheaded by those who resist the established order (Meyerson, 2001); it can occur as a result of concerted actions by organized or informal groups (Scully, this issue; Scully & Creed, 2005); or it can result from specific actions of key organizational players who recognize a particular order and are authorized to challenge and change it (Sturm, this issue). One way to understand the emergence of flexible work and family policies, for example, is as the codification of accumulated requests first by individuals and then

small groups needing accommodation, and finally leaders who have taken the lead in institutionalizing these policies.

The articles in this issue build on these features of the negotiated order perspective. The authors take a sociological, ethnographic, and/or feminist approach, studying women's and men's negotiations through a negotiated order lens. This perspective provides the potential for a dynamic way to consider how gender might play out in negotiations taking place in organizations—through the nature of the work, the status hierarchies of the actors, and the politics and practices of organizational realities. It also gives us a way to think about how negotiations over second generation gender issues can create new negotiated orders, ones that might build from and foster greater gender equity.

Second Generation Gendered Negotiations

Organizations are the settings for many of the negotiations we carry out in our lives, and these settings are gendered (Acker, 1990; Britton, 2000, 2003; Ely & Padavic, 2007; Fletcher, 1999; Kolb, Fletcher, Meyerson, Merrill-Sands, & Ely, 2002; Martin, 1994; Valian, 1998). Acker (1990) defines what it means to say that an organization is gendered: "Advantage and disadvantage, exploitation and control, action and emotion, meaning and identity are patterned through and in terms of a distinction between male and female, masculine and feminine" (p. 146). Through such patterns reinforcing gendered distinctions in jobs and organizations, second generation gender issues can become embedded in institutional cultures and practices.

Ely and Meyerson (2000) identify several different types of second generation practices that may extend to and shape negotiations in organizations, including how jobs are formally defined, evaluation and performance reviews, and informal patterns of work. These practices reflect cultural narratives that define basic assumptions about how things get done in a particular organization. Gendered practices also include the shaping of assumptions about who is seen as a leader and the legitimacy attached to the role, the value assigned to different skills and contributions, and how the lines between work life and life outside of work are evaluated. All of these practices can seem benign to some of the people within and outside the organization, but they may be experienced quite differently depending on the differential power people have and the positions people occupy.

However they are seen, second generation gender practices constitute a negotiated order that shapes the context for ongoing negotiations. They bring to the fore an expanded domain of potentially negotiable issues in organizations, issues for which certain people are likely to be differentially, and possibly disadvantageously, positioned to negotiate. The issues themselves are not clearly defined but rather are socially constructed as part of the negotiation (Kolb & Putnam, 1992). These negotiable, but socially constructed and gendered issues include the parameters of jobs, understandings of leaders and leadership, gaining credit for work, building and sustaining personal networks, and beliefs about the ideal worker.

Gendered Jobs—Negotiating Opportunity

Certain types of work have historically been described as gendered—for example, clerical work as feminine and firefighting as masculine (Acker, 1990; Cockburn, 1985). Such gender typing (Britton, 2003) means that some occupations are seen as a good “fit” with feminine characteristics and others with masculine characteristics. These characteristics can be formally written into job descriptions and/or become the informal criteria by which people are moved into jobs. Jobs that are conceived as masculine come to be seen as more suitable and attractive for men, and so one is more likely to see more men in those roles, reinforcing the perception that only men are suited for them (Ely & Meyerson, 2008). Gendering of jobs can mean that creating certain opportunities can become a major issue of negotiation for some people, those who do not ostensibly “fit” the job, but not for others. The key here is that critical job negotiations often are not about compensation or even a given job, but about jobs and careers more broadly.

In one organization, for example, the job description for production supervisor defined the required skills in terms of control, dealing with discipline, and availability to work long hours (Coleman & Rippin, 2000; Rapoport, Bailyn, Fletcher, & Pruitt, 2001). In practice, the role actually required that supervisors be skilled at working across boundaries to integrate the activities of diverse groups. Yet, these were not part of the posted job requirements nor were they criteria in the selection process. The definition of the situation and the issues defined as up for negotiation were gendered in ways that made the job appear to be more suitable for men than for women. Not surprisingly, there were no women recruited into these roles.

Gendered jobs are present, but with slightly different slants, across levels of an organization. In one financial services firm, for example, promotion of partners into leadership roles was based on skill at selling—rainmaking—something male partners were more successful at than their female counterparts (Merrill-Sands & Kolb, 2001). Whether this was a result of different skill sets or merely differential access to client decision makers is not clear, but the outcome was similar to that of the production supervisors. For the women to be considered for these roles, they needed to negotiate for them—to open up the decision-making process and, perhaps, challenge the existing criteria. These actions are not without risk. Roth (this issue) shows how successful women on Wall Street eschew certain roles and clients—automotive, oil, and gas, for example—where their gender suggests a lack of expertise, and instead concentrate on roles in which being female was not viewed explicitly as a weakness.

Negotiating for opportunity can take other forms as well. An oft-made argument about the lack of women in senior leadership positions concerns the experience they have accrued relative to their male counterparts. Too much time in a staff role or scattered assignments may not build the kind of résumé leaders look for when they make promotion decisions. In one firm, assignments to large important clients were based on the belief that an accountant would be able to stick with that client for the long haul. Concern about maternity and child care leaves had the effect of precluding women from consideration in these roles, which were critical to advancement in the firm (McCracken, 2000). The second generation gender negotiation issue raised here is not

about bargaining for a certain job and the accompanying compensation; it concerns a much tougher issue of redefining the norms and expectations around what it takes to be seen as an appropriate fit and then to succeed in a given job or at a given level in an organization.

Legitimate Leaders—Negotiating Authority

All new leaders are tested (Ciampa & Watkins, 2005), but women leaders may face hyperscrutiny (Eagly & Carli, 2007; Kanter, 1977). First, if there are few women in leadership roles, both insiders and outsiders may assume that she got the job because she is a woman (Kolb, Williams, & Frohlinger, 2004). Despite 25 years with the firm in a number of leadership roles, Ann Mulcahy, the CEO of Xerox, was described as the “accidental CEO” when she assumed the role (Morris, 2003).

Second, a woman’s effectiveness as a leader is likely to be judged differently from that of her male counterparts. Women are often judged on a double standard in their exercise of authority—sometimes thought too aggressive or assertive, at other times not assertive enough (Eagly & Carli, 2007). A recent study by Catalyst (2007) documents the dilemma—to act in accordance with feminine expectations, a woman is seen as not tough enough to command authority in a leadership role. There is a considerable literature that compares men leaders to women leaders and concludes that they lead differently (Helgesen, 1990; Rosener, 1990). Women have been found to be more relational and transformational (Eagly & Carli, 2007). Some suggest that a relational stance toward leadership is the way women cope with the double binds they face—can she be a woman and a leader too? But others suggest that these very leadership skills, which are presumably needed in today’s organization, do not serve women all that well because they are not seen as evidence of competence when enacted by women. Rather, they are seen as just what women do (Fletcher, 2002). Thus, a woman leader who leads in this way might not be seen as exhibiting authority.

This differential assessment shows up in several studies of 360 degree feedback, where despite the findings that women either equaled or outperformed their male colleagues, what was seen as effective leadership behavior for men—aggressively achieving bottom line results—was not seen in the same way for women. In contrast, being accessible and fostering teamwork was seen as effective leadership for her but not for him (Kabacoff, 2000). Note that bottom line results call for authority granting, while accessibility and teamwork in some organizational cultures are antithetical to accepted notions of authority. And finally, for women, holding a leadership role does not mean that legitimate power is accorded to the same degree as it is for their male colleagues (Martin & Meyerson, 1998; Molm, 1986).

New leaders need to negotiate (Watkins, 2006), but gendered definitions of legitimate leaders and some of the double binds around women and leadership put additional issues on the table for women leaders. Women’s legitimacy as leaders may call for them to demonstrate leadership and femininity at the same time. Golden-Biddle and Reay (this issue) describe how nurse practitioners navigate these issues as they encroach on the turf of higher status physicians. Other groups of women, those who are pregnant or menopausal,

have to contend with different sets of challenges to their legitimacy (Greenberg, Ladge, & Clair, this issue; Putnam & Bochantin, this issue). Acker (1990) points out that there is no place for bodied processes or functions in gendered organizations, making women and their bodies suspect (Martin, 1990). As with gendered jobs, the critical issue here is that members of marginal groups often have to negotiate for authority, personal respect, access, and resources that are taken for granted by those in the dominant group.

Gendered Work—Negotiating Value

The challenges of claiming value can be seen in the work on the “glass cliff.” Ryan and Haslam (2007) suggest that there are gendered dimensions to who gets tapped to lead change when organizational performance is on a downward trend. In one organization, for example, managers, but especially women, were routinely asked to help “fix” situations where there were problems. Often this involved taking a job with a lesser title, say an “acting” role without the traditional levels of credit and compensation. In another example, a star female professional at a software solutions firm was asked to come in to save a relationship with the firm’s largest client. Three months and over a half million dollars of additional orders later, the relationship was secured, but the woman received no commission on the additional sales she had secured, nor a promotion. Instead, she went back to the job she’d been slated for before turning the client relationship around (McGinn & Witter, 2004). When encountering gendered work, it may appear at first glance that women would be well served by negotiating to claim value, but laboratory research has shown that the very act of negotiating for credit or title can be seen as inconsistent with the cultural, gendered norm of women being “amiable.” In other words, women may invite backlash by merely asking to be recognized for the value they bring their organizations (Bowles, Babock, & Lai, 2007).

Fletcher (1999) describes the invisible work—extra work that does not get noticed or recognized—of women engineers who try to anticipate problems before they happen, seek to integrate the work of others, and try to build a team (see Mumby & Putnam, 1992). She shows how this work gets “disappeared.” While these engineers’ actions could be seen as signaling innovation in how to accomplish the work, instead they may be discounted as just women being nice or wanting to be liked. Similarly, Martin (1994), in delineating some of the second generation issues that lead to exclusion of women faculty, shows how the extra and invisible jobs that women and minority faculty members are expected to perform—representing diversity viewpoints on a committee or task force, advising and counseling of graduate students and junior faculty—can also create double binds. Although this work means extra hours, time spent away from more critical activities that “count,” to decline such work can violate expectations of the way women and minority faculty are supposed to behave.

These examples, situated in contexts where masculine approaches to work tend to be highly valued and feminine approaches to work underrated (Valian, 1998), suggest that claiming the value of one’s work so that it is recognized and rewarded is part of the gendering of negotiation as it occurs in the workplace (Ashcraft, 1999). Golden-Biddle and Reay (this issue) show how nurse practitioners negotiated to expand the boundaries

of their work into the medical domain as they preserved the value of the caring ethic of nursing. While this expanded the nurses' roles, altered the way in which care was administered to patients, and reduced the need for doctors on the hospital floor, it did not fundamentally affect the relative status of nurses and doctors in the hospital. Sturm (this issue) argues that individual negotiations for credit or recognition are unlikely to accumulate unless they are catalyzed by a leader with credibility and accountability in an organization.

Exclusionary Networks: Negotiating Support

Ties to powerful or high status others lend status to an organizational member (Cook, Emerson, Gillmore, & Yamagishi, 1983). But the majority of those in power in many organizations are male and networks tend to be homophilous, i.e., people tend to interact with others like themselves (Brass, 1985; Lincoln & Miller, 1979). In addition, men tend to have more homophilous ties than women, and realize greater returns for these ties than do women (Ibarra, 1992). Homophily in client preferences on Wall Street means that women find it difficult to succeed in certain areas of practice and therefore can be disadvantaged when it comes time for rewards and promotions (Groysberg, 2008; Roth, 2006). Roth (this issue) illustrates this by describing how women had to actively negotiate for opportunities to meet top clients and be involved in deal activities, while men were pulled into rainmaking situations, asked to go golfing and meet the guys, invited on business trips, etc. Excluded from social activities that white men engaged in, women were cut off from opportunities to build valuable relationships within their own firms that might bring them to the attention of important leaders and clients.

A significant body of work documents the critical role of social networks in gathering information and support (Mizruchi & Stearns, 2001), securing positions (Fernandez & Weinberg, 1997), negotiating compensation (Seidel, Polzer, & Stewart, 2000) and generally influencing others (Brass, 1984). Even assumptions about a candidate's social network can affect negotiations. Belliveau (2005) found that salary offers were constructed based on employers' assumptions regarding women's access to comparative salary information—employers assumed women in same-sex colleges had less access to information about men's (higher) salaries than women in similar status coeducational institutions, and therefore made lower offers to the graduates of same-sex colleges.

To counter these exclusionary effects, employee network groups or caucuses form, at least in part, to provide the kinds of information and support that often occur naturally for white, heterosexual men. Based on social identity, these employee network groups offer advice and mentoring that can position members as they negotiate individually for access, opportunities, and compensation. Scully (this issue) documents several examples of how these groups paved the way for individual members and the groups as a whole to negotiate for particular benefits such as bonuses for secretaries and partner benefits for gay and lesbian employees. Similarly, Sturm (this issue) describes how leaders can catalyze the development of posse groups and communities of interest that not only help generate support for individual faculty members when they negotiate, but also keep the systemic nature of second generation gender issues on the table.

Ideal Workers—Negotiating Commitment

In many cultures, up until quite recently, paid employment was seen as the domain of men and the private domain of family belonged to women. While this traditional family structure still dominates in some cultures, it is no longer the norm in western societies. As women have joined men in the workforce, the issues associated with having both a challenging work life and a fulfilling family life have come to the fore. The gendered nature of boundaries around and intersections between work and personal life has implications for both women and men in the workplace.

While many organizations institute policies that theoretically enable people to integrate their work and personal lives, these policies exist in cultural contexts that still value the “ideal worker,” the person who is willing to put work before all else, whose time to spend at work is unlimited, and for whom the demands of family, community, and personal life are secondary (Williams, 2000; Rapoport et al., 2001). Crisis oriented work patterns, unbounded meeting times and places, and the need to put in face time shape who is seen as an ideal worker and who is not (Bailyn, Fletcher, & Kolb, 1997). While this “masculine” model does not suit either men or women very well, it persists. Indeed, with the advent of “extreme jobs” and 24/7 expectations, the conflict between responsibilities for family and success at work have been exacerbated (Hewlett, 2007).

From a negotiation perspective, the context of the ideal worker serves as a background against which individual negotiations occur. Mothers are routinely offered less desirable assignments and lower compensation than women without children (Correll, Benard, & Paik, 2007). Defined promotion schedules, such as tenure decisions in universities and admission to partnerships in financial service and law firms, create a well-articulated clash between a biological window for child birthing and rearing and up or out career decisions (Marshall, 1984; Martin, 1994). Negotiating to extend a tenure or partner track can be undertaken either by an individual negotiator or at a more systemic level through institutional-level negotiations (Bailyn, 2006; Benko & Weisberg, 2007).

Flexible work arrangements, whether formally applied for or informally managed “under the radar,” are also within the purview of negotiations. First, it is important to look at who would take advantage of any available flexibility. Choices to access these benefits are shaped by assumptions about who can make use of them (likely mothers) and how careers will be effected (often negatively) (Bailyn, 2006; Rapoport et al., 2001). Only certain people, therefore, might be seen as legitimately able to take advantage of flexible work policies. Men are less likely to negotiate for these benefits and, as Scully (this issue) shows, they are a subject of contention between black and white women. Gendered assumptions about flexible work benefits, which have become part of the negotiated order, have limited the use of these policies to a narrow band of the potential target population (Benko & Weisberg, 2007; Hewlett, 2007).

Those who do make use of “family-friendly” policies will likely have to negotiate over how the flexible arrangement will work. All things being equal, managers would generally prefer to have their people fully employed and available (Rapoport et al., 2001). When part-time arrangements are possible, negotiations are needed so that people do not find themselves getting compensated part-time while working full-time. Dealing with

managerial and coworker resistance to such arrangements can result in people giving up and leaving their companies, even when those companies have flexible and part-time work policies on the books (Hewlett, 2007). It can make a significant difference whether flexible arrangements are more a norm or an exception, or whether they are implemented on an individual basis or in a work group context (Perlow, 1997; Rapoport et al., 2001).

As with other negotiations over work arrangements, negotiations around flexible work practices also involve signals about the negotiator's commitment to the organization and how that will impact their current work and future prospects. Because traditional notions of the ideal worker derive from masculine norms that keep the body and private lives separate and hidden in the workplace, they present challenges to certain groups of women for whom such hiding is impossible. The pregnant career women studied by Greenberg et al. (this issue) wrestle with these concerns. While the women, all pregnant for the first time, want to be seen as serious about their careers and loyal to their organizations, they struggle with themselves about what to negotiate and how to deal with changing perceptions of their commitment to their organizations. The menopausal women in Putnam and Bochantin's study (this issue) are often at a loss as to how to take control in situations they experience as hostile to them and what is happening with their bodies. Their participation on message boards with other women who share their experiences helps them see themselves as having agency in negotiating their treatment at work.

Implications for Negotiation Processes

Considering gender and negotiations in organizations from a negotiated order perspective not only expands the range of issues that are potentially negotiable, it also turns our attention to how we understand the negotiation process itself. In each of the articles in this issue, the negotiations that occur are not formal in the sense of sitting down with another organizational member to reach agreement on a specified topic such as a budget or salary. Rather, the negotiations described here are informal interactions embedded in the actions people take in response to concerns that arise in the routines of work. Negotiators in these situations are not engaged in distributive or integrative bargaining as we classically define them, but are instead taking actions based on their analyses of the gendered contexts in which they operate. In these situations, a member of the dominant group might experience a work practice as normal and neutral—a nonissue—whereas a member of a marginal group may experience it as exclusionary. The negotiators described in the articles in this issue are often negotiating around the issues rather than bargaining over them directly.

To negotiate around and about second generation issues means challenging the status quo, and such challenges often meet resistance. It is often difficult for people to understand and accept that the presence of gendered organizational practices does not necessarily imply that the individuals carrying out these practices are biased or sexist (Sturm, 2001). Opening a negotiation about a particular gendered issue, say opportunities to meet or work with certain types of clients, is often interpreted as a judgment on decision makers in the organization. Such assumptions of supposed bias, whether intended

or unintended, may lead to yet more difficulty and defensiveness in negotiations over second generation issues.

Negotiating about second generation gender issues can also challenge deeply held beliefs that may not be directly voiced or addressed but are part of the shadow negotiation (Kolb & Williams, 2000). Opening a negotiation about flexible work arrangements, for example, can raise issues about performance, credibility, and competence (Rapoport et al., 2001). Negotiating for an opportunity might raise questions about skills and risk that may not have been clearly articulated in the past (Merrill-Sands & Kolb, 2001). These hesitations are not likely to be expressed directly, because to do so might create the impression of bias and blame. Thus, they are not “on the table,” but they are part of the negotiation nonetheless.

One of the premises of negotiated order theory is that individual negotiations accumulate to alter the existing order (Fine, 1987). The research presented in this issue raises the question of whether this holds for negotiated attempts to change the gendered order of organizations. Roth (this issue) is rather pessimistic, despite documenting some individual successes, that the basic situation for women on Wall Street will change as a result of individual efforts at negotiations. Similarly, Golden-Biddle and Reay (this issue) suggest that despite Nurse Practitioners’ efforts to redefine their roles, the basic hospital ethos of curing will not soon be supplanted by one of caring. These conclusions ignore the possible cumulative effects of changing narratives, the spreading of successful strategies, and the small wins that can be brought about through individual initiatives (Meyerson, 2001; Ely & Meyerson, 2000), but they make clear that fostering gender equity through changes in the gendered negotiated order will require moves beyond individual negotiations (Meyerson & Fletcher, 2000; Meyerson & Kolb, 2000). Scully (this issue) suggests ways that employee groups serve this end but also shows us the challenges of negotiating shared agendas. Sturm (this issue) highlights the critical role of organizational catalyst as a means of changing the negotiated order in ways that can level the playing fields for individual negotiators.

The articles that follow give us a window into a new way of thinking about how gender plays out in negotiations within organizations. The connection to our classical understandings about negotiation research and how we think about gender and negotiation may seem like a stretch—and it is. Our intent is to broaden the discourse about these issues in a way that explicitly takes into account the gendered contexts in which negotiations play out and how negotiations impact that context. We invite you to think about and engage in these issues with us.

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